

Texas Department of Housing and Community Affairs

MANUFACTURED HOUSING DIVISION

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**NOTICE AND INFORMED CONSENT TO THE INSTALLATION OF A USED
MANUFACTURED HOME ON AN IMPROPERLY PREPARED SITE**

Consumer: _____

RE: Site Location

Before installing your used manufactured home on your site as requested, a visual inspection of the site was performed, and the following problems (as checked) were observed:

[] The site has evidence of ponding

Ponding is where water collects and does not drain properly. It can cause a variety of problems including, but not limited to, reducing the load bearing capacity of soil and allowing piers or other parts of the foundations system to sink; reducing the ability of anchors to hold the home firmly; and causing moisture build up under the home and possibly in the home.

[] The site has evidence of runoff under heavy rains

Runoff is where the slope of the home site and/or the land around the home site have slope and/or other conditions, such as gullies and ditches, in which rains trigger rapid build up of quickly flowing streams. Such rapidly flowing water may erode and/or damage the stabilization system for your home and possibly cause other damage.

[] The site has evidence of bare uncompacted soil

Bare uncompacted soil is subject to compression and rapid settlement when anything heavy, such as a manufactured home is placed on it. Because a manufactured home must be installed in accordance with the applicable instructions, a site with bare uncompacted soil may require a greater number of piers than was originally planned. It may also necessitate the use of other anchoring devices than were originally planned. These things may increase the cost of your installation. Even with such additional measures, bare uncompacted soil may lead to rapid settlement and other problems with your home.

If you elect to proceed with the installation of your home on this site without correcting these conditions, **you accept these risks** by signing this waiver notifying you of problems with the site location.

Executed this _____ day of _____, _____.

Signature

Signature

Name (print or type)

Name (print or type)